THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, CHANDIGARH

Item 4

CP (CAA) No. 14/Chd/PB/2023
(2nd Motion)

Under Sections 230-232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation:

AKM Real Estate Developers Private Limited

with its registered office at
SCO 140-141, Sector 34 A, Chandigarh-160022.
PAN:AAHCA0057B
CIN: U45200CH200PTC030991

…Petitioner Company No.1/Transferor Company No.1

AND

Lord Properties Private Limited

with its registered office at
Khasa Distillery Company, Village Khasa,
Amritsar, Punjab-143107
PAN:AAACL3052G
CIN: U70101PB1981PTC004581

…Petitioner Company No.2/Transferor Company No.2

And

Digvijay Chemicals Limited

with its registered office at
Khasa Distillery Company, Village Khasa,
Amritsar, Punjab-143107
PAN:AAACD4965G
CIN: U24119PBI987PLC051877

…Petitioner Company No.3/Transferee Company

Order delivered on: 12.04.2023

Present :

Mr. Rahul Jogi, Advocate for the petitioner companies.

This is a second motion company petition filed by the Petitioner-Companies, **AKM Real Estate Developers Private Limited** (Petitioner Company No.1/Transferor Company No.1), **Lord Properties Private Limited** (Petitioner Company No.2/Transferor Company No.2) and **Digvijay Chemicals Limited** (Petitioner Company No.3/Transferee Company) in relation to the Scheme of Amalgamation between the petitioner companies in terms of Section 230-232 of the Companies Act, 2013

2. In its petition, the petitioner companies has prayed inter alia to issue directions in relation to publication in press and notices to be issued to the authorities concerned in relation to date of hearing of the petition and calling for objections.

3. The first motion application seeking directions for dispensing with the meetings of the Equity Shareholders, Debenture Holders, secured and unsecured creditors of the Transferee Company was filed before this Tribunal vide Company Application No. CA(CAA) No.7/Chd/Pb/2023 and based on such application, necessary directions were issued on 21.03.2023. In the order dated 21.03.2023, the meetings of equity shareholders, Debenture Holders, secured and unsecured creditors of the applicant companies were dispensed with for the reasons mentioned in the aforesaid order.

4. The notice of hearing will be advertised in “Financial Express” (English, Chandigarh Edition) and “Jansatta” (Hindi, Chandigarh Edition) not less than 10 days before the next date fixed for hearing.

5. The main objects, date of incorporation, authorized and paid-up share capital and the rationale of the Scheme have been discussed in detail in the order dated 21.03.2023.

6. In addition to the above public notice, the Petitioner Companies shall serve the notice of the petition on the following Authorities namely, a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; New Delhi; (b) Concerned Registrar of Companies, (c) Official Liquidator (OL); (d) Real Estate Regulatory Authority (RERA); (e) Jurisdictional Income Tax Authorities through the Nodal Officer-Principal Commissioner of Income Tax, NWR, Aayakar Bhawan, Sector 17-E, Chandigarh by mentioning the PAN of the company along with a copy of this petition by speed post immediately.

7. The petitioner-companies shall at least 7 days before the date of hearing of the petition file an affidavit of service regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the ‘Scheme’ contemplated by the authorities to whom notice has been given may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the ‘Scheme’ on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner

companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

8. The next date of hearing of the petition shall be on 06.07.2023 for the consideration of the approval of the scheme as contemplated between the petitioner companies.

9. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

Sd/-
(Subrata Kumar Dash)
Member (Technical)

Sd/-
(Harnam Singh Thakur)
Member (Judicial)

April 12, 2023
VN/SA